Superior Court of the State of California
County of Orange

Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine

Hearing Date and Time: May 28, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: **Civil Court Reporter Pooling**. For additional information regarding court reporter availability, please visit the court's website at **Court Reporter Interpreter Services**.

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case. **The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.**

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

https://www.occourts.org/media-relations/civil.html before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at **https://www.occourts.org/media-relations/aci.html**. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at **https://www.occourts.org/media-relations/aci.html**. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name	Tentative
1.	***In Re: Herrera*** *2025-01531449*	**OFF CALENDAR** based on request for dismissal filed and entered on May 27, 2026.
2.	***In Re: Aguilar Nava*** *2026-01554839*	Before the court is the petition of petitioner J.G. Wentworth Originations, LLC (Petitioner) for court approval of proposed transfer of certain periodic payments real party in interest and payee Luis Aguilar Nava (Payee) is scheduled to receive under a structured settlement. As more fully set forth below, the hearing on the petition is **CONTINUED TO JULY 23, 2026, AT 2:00 P.M., IN DEPARTMENT C23**, for Petitioner to provide additional information necessary to enable the court to determine whether the required findings can be made. In these proceedings, Petitioner seeks court approval for Payee to transfer 84 monthly payments of $624.24, increasing at 2 percent annually, beginning on September 15, 2026, and ending August 15, 2033, and 40 monthly payments of $2,356.14, increasing 2% annually, beginning September 15, 2033, and ending December 15, 2036. These payments total $152,219.52 and have a discounted present value of $108,564.30. In exchange for transferring the right to receive these monthly payments, Payee would receive a present, lump sum payment of $50,000, which represents 46.05 percent of the

payments' present value and equates to an equivalent interest rate of 19.23 percent if Payee were to take a loan.

Insurance Code section 10139.5, subdivision (b) requires the court to consider a variety of circumstances, including Payee's financial and economic situation, to determine whether the transfer is fair and reasonable, and in the best interest of the Payee. Petitioner and Payee, however, have failed to provide sufficient information for the court to make such a determination. Although Payee states he does not have any minor children, Payee states he had been financially supporting his 4 siblings, 3 of whom are now over 18 years old and caring for themselves. Is he still financially supporting the 4th sibling and/or does he have any other dependents?

Furthermore, although Payee states he is currently experiencing financial hardship, the record shows Payee's monthly income and annuity payment exceeding his living expenses by over $1,000. Payee also does not adequately explain how the funds from the proposed transaction will be used. Payee states the funds from the proposed transaction will be used to pay $20,000 in credit card debt, and the remaining $30,000 will be used to pay for community college and expenses, but $30,000 seems well above the amount needed to pay for such expenses. Payee does not state whether he has any other assets or why he cannot use his excess income to pay off the credit card debt.

The court needs more information about Payee's financial circumstances and a greater explanation about how this proposed transaction is fair, reasonable, and in Payee's best interest before this transaction can be approved, if at all. Indeed, the court is concerned the terms of the proposed transaction is not in Payee's best interest, especially when compared to the terms of the previous transactions the court approved.

Accordingly, Petitioner and Payee are ordered to file an additional declaration(s) and any other documents needed to provide the court with the foregoing information about Payee's financial condition and to demonstrate the transaction is fair and reasonable and in Payee's best interest. All filings are ordered to be filed and served at least 20 days before the continued hearing date.

Based on the foregoing, the petition is **CONTINUED** as set forth above.

Petitioner's counsel is ordered to give notice.

3.	***In Re: 4968 Avila Way, Buena Park, CA 90621*** *2025-01489807*	Before the court is the motion of claim for disbursement of surplus funds by claimant Nina Ilkhanoff (Claimant). As set forth below, the hearing is continued to **THURSDAY, AUGUST 6, 2026, AT 2:00 P.M., IN DEPARTMENT C23**. On June 11, 2025, petitioner Quality Loan Service Corp. (Petitioner) filed a petition and declaration regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale held on January 6, 2025, regarding real property located at 4968 Avila Way, Buena Park, California 92601 (Property). The Property had sold for $569,100, and after paying the amounts set forth in Section 16 of the petition, a surplus balance of $27,144 remained. On September 25, 2025, the court granted Petitioner's request to deposit the surplus funds with the court for the court to adjudicate the owner of those funds. (ROA 16.) Petitioner subsequently deposited the $27,144 in surplus funds and was discharged from responsibility for distribution of the surplus funds. (ROA 21, 27.) No claim to the surplus funds, however, was asserted prior to or at the hearing on unresolved claims held on December 11, 2025, and the funds continue to remain on deposit with the court. (ROA 32.) Claimant now has filed this motion of claim for disbursement of surplus funds. (ROA 49.) The proof of service submitted with the motion, however, is deficient in multiple ways. First, the proof of service filed on March 16, 2026, states a "case management statement" was served. (ROA 39.) It does not identify the notice of motion, memorandum of points and authorities, or the supporting declaration as being served. Second, the proof of service states the "case management statement" was served solely on counsel for Homestead Equities, LLC. All documents also should be served on Homestead Equities, LLC at the address listed in attachment 8 to the petition. The motion itself also is deficient in that the declaration of Nina Ilkhanoff submitted as the factual basis for the motion is not signed by Nina Ilkhanoff. Instead, the declaration is signed by Cynthia Ilkhanoff. The signature block states Cynthia Ilkhanoff has a power of attorney for Nina Ilkhanoff. Notably, that portion of the declaration is not under penalty of perjury and no copy of the alleged power of attorney was submitted with the declaration showing the scope of the power of attorney. Furthermore, Code of Civil Procedure

		section 2015.5 allows declarations under penalty of perjury when "subscribed" by the party or witness. The term "subscribe" means "to sign with one's own hand." (*Doe v. Superior Court* (2011) 194 Cal.App.4th 750, 754.) Here, the declaration is improperly signed by Cynthia Ikhanoff of facts apparently personally known by Nina Ilkhanoff. The court will need admissible evidence in the form or a declaration by someone with personal knowledge of the facts presented or facts of which the court may properly take judicial notice. The court also will require much more detail than is provided in the current declaration, which is highly conclusory and fails to establish the necessary foundation for many of the facts allegedly presented. The court therefore **CONTINUES** the motion as set forth above. At least 16 court days before the next hearing date, Claimant must (1) submit admissible evidence showing entitlement to the surplus funds, i.e., Claimant's own sworn declaration or the sworn declaration of her power of attorney Cynthia Ilkhanoff, attesting to facts within her own personal knowledge and attaching a copy of the power of attorney; and (2) file a proof of service of all moving papers on all potential claimants identified in the trustee's declaration at the addresses specified therein - ROA 2 at Ex. C. Counsel for Claimant is ordered to give notice.
4.	***In Re: 17150 Fremont Lane, Yorba Linda, CA 92886*** *2025-01526961*	On November 13, 2025, petitioner Clear Recon Corp (Petitioner) filed the petition regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale under Civil Code section 2924j. Petitioner filed the petition following a trustee's sale pursuant to a deed of trust conducted on January 22, 2024, regarding the property located at 17150 Fremont Lane, Yorba Linda, California 92886 (Property). After paying off the trust deed, all senior liens, and undisputed claims, Petitioner sought to deposit the surplus funds of $393,366.84 with the court and be discharged from responsibility for distribution of the surplus funds. The court conducted a hearing on the petition on March 5, 2026. Prior to that hearing, claimant Xin Yang (Yang) filed a claim to the entirety of the surplus funds. At the hearing, the court granted the petition, ordered Petitioner to deposit the surplus funds with the court, and set today's hearing to address any and all claims to the surplus funds. The court explained it could not grant Yang's claim at that time because the code required the hearing on any claims to surplus funds to be conducted after the funds are deposited

with the court and after the court clerk gave notice to all potential claimants. The court further explained Yang could stand on his original claim or supplement additional information. On or about March 19, 2026, Petitioner deposited the surplus funds with the court.

The second paragraph of Civil Code section 2924j(d) states, "Within 90 days after deposit with the clerk, the court shall consider all claims filed at least 15 days before the date on which the hearing is scheduled by the court, the clerk shall serve written notice of the hearing by first-class mail on all claimants identified in the trustee's declaration at the addresses specified therein."

Here, the clerk mailed notice to Yang and the other potential claimant, Shou Jin (Jin), at the property that was sold. That is the address that was listed by Petitioner, but that is not sufficient given the property has been sold and additional addresses were provided in the various claims Yang and Jin submitted to the court and Petitioner. The court notes Petitioner also served notice of today's hearing on Jin and Yang, but it was served by email alone. Civil Code section 2924j(d) requires notice to be served by first class mail. Email may be acceptable if that is the only address for a potential claim, but here there are both email and mailing addresses for Jin and Yang.

As a result, the hearing on Yang's and any other claims must be **CONTINUED TO THURSDAY, JULY 23, 2026, AT 2:00 P.M., IN DEPARTMENT C23**. The court directs the clerk to serve notice of the hearing by first class mail and electronic service to the following individuals at all the following addresses:

<u>Xin Yang</u>
c/o Law Offices of James Zhou
17700 Castleton Street, Suite 568
City of Industry, CA 91748

jzhou@zhoulawoffices.com

yangxin_1231@aliyun.com

<u>Shou Jin</u>
c/o Minnie Zhao
3283 Red Pine Road
Yorba Linda, CA 92886

shuojin@myyahoo.com

lawyerbai@vip.sina.com

		minniezh2008@yahoo.com The clerk is directed to give notice as described above.
5.	***Petition of Strom*** *2025-01481925*	Before the court is the amended petition of petitioner Philip Gabriel Strom (Petitioner) seeking "declarative relief acknowledging one same person." As set forth more fully below, the petition is **DENIED WITHOUT PREJUDICE**. By this petition, Petitioner seeks an order declaring his ancestors had presented under the anglicized version of their birth names and are the same person, i.e., deceased great grandmother, Mary Antoinette Bianchi, presented as Mary Whilte; deceased great-great grandfather, Cesidio Bianchi, presented as Jesse White, and his great-great grandmother, Genoveffa Palma, presented as Genevieve Palmer. This relief is sought to enable Petitioner to obtain Italian citizenship based on these ancestors. On March 2, 2026, the court noted the original petition filed on May 12, 2025, lacked any authority, statutes, codes or case law, and any amended petition would need to include such authority and be supported by certified copies or originals of any documents. (ROA 9.) In response, Petitioner filed the amended petition seeking the same relief as the original petition, and citing Code of Civil Procedure section 1060 and related case law on declaratory relief pursuant to that statute. "To qualify for declaratory relief under section 1060, plaintiffs [are] required to show their action . . . presented two essential elements: '(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party.' [Citation.] 'The "actual controversy" language in . . . section 1060 encompasses a probable future controversy relating to the legal rights and duties of the parties.' [Citation.] It does not embrace controversies that are 'conjectural, anticipated to occur in the future, or an attempt to obtain an advisory opinion from the court.' [Citation.]" (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546.) "'While section 1060's language "appears to allow for an extremely broad scope of an action for declaratory relief" [citation], "an actual controversy that is currently active is required for such relief to be issued and both standing and ripeness are appropriate criteria in that determination. [Citation.]" [Citation.] "One cannot analyze requested declaratory relief without evaluating the nature of the rights and duties that the plaintiff is asserting, which must follow

		some recognized or cognizable legal theories that are related to subjects and requests for relief that are properly before the court."' [Citation.]" (*Lee*, *supra*, 6 Cal.App.5th at p. 546.) Here, Petitioner has failed to establish declaratory relief is appropriate in this case. Petitioner has not joined any party as a defendant in this case with whom he has a controversy, and he has not established the existence of any actual, present controversy relating to his rights and duties and the rights and duties of any other party. Petitioner asks this court to declare the records of another state and county are inaccurate in that they fail to set forth the correct birthname of Petitioner's alleged ancestors. The records at the heart of Petitioner's claim, and the records from which many others derive, are from Indiana. Petitioner has not set forth any authority authorizing this court to declare Indiana records inaccurate. Indeed, Petitioner does not rely on any records from Orange County. A controversy requires two parties, but Petitioner is seeking a declaration without joining another party with whom he has a controversy. At a minimum, it would appear some official from the jurisdiction where the allegedly inaccurate records were issued would need to be named in this case, and Petitioner may need to go to that jurisdiction to obtain the requested relief. In short, Petitioner has failed to establish he has brought this action in the proper court and joined all necessary parties. As noted at a prior hearing, the court acknowledges the purported order from the San Diego County Superior Court from February 2018, which allegedly grants the sort of relief Petitioner seeks here. An order or ruling from another trial court, however, may not be cited and does not constitute authority of any sort in other unrelated trial court proceedings. Moreover, there is no evidence presented to show the facts in that case are in any way comparable to the facts of this case. Based on the foregoing, the petition is **DENIED WITHOUT PREJUDICE.** The clerk is directed to give notice of this ruling.
6.	***Supplement Advisory, Inc. vs. Robinson Manufacturing, Inc.*** *2025-01519709*	Before the court is the petition by petitioner Supplement Advisory, Inc., dba The Mewes Group (Petitioner) in which it seeks to confirm a Final Arbitration Award, dated July 15, 2025, by Judge Kirk Nakamura (Ret.) at JAMS in favor of Petitioner and against respondent Robinson Manufacturing,

		Inc. (Respondent). As more fully set forth below, the Petition is **GRANTED**. This case arises from a contract between Petitioner and Respondent whereby Respondent agreed to pay Petitioner a percentage of an Employee Retention Tax Credit (ERC) received by Respondent. On July 15, 2025, Judge Kirk Nakamura (Ret.), issued a Final Award of $92,486.97 plus costs in the amount of $15,876.40 in favor of Petitioner and against Respondent. Code of Civil Procedure §1290.2 provides as follows: "A petition under this title shall be heard in a summary way in the manner and upon the notice provided by law for the making and hearing of motions, except that not less than 10 days' notice of the date set for the hearing on the petition shall be given." Once a party to an arbitration files a petition to confirm, correct, or vacate an award, a response must be filed and served within 10 days after service of the petition, unless a judge extends, or both parties agree to extend, this deadline. (Code Civ. Proc., § 1290.6). If a response is not filed by the deadline, the allegations of the petition are deemed admitted by the respondent. (Code Civ. Proc., § 1290.) Here, there has been no response to the petition by Respondent. Further, the court finds that the Petition complies with the requirements of Code of Civil Procedure section 1285.4. A copy of the Engagement Letter is attached as Attachment 4(b) to the petition. The penultimate paragraph of the Engagement Letter includes the arbitration provision. The Petition sets forth the name of the arbitrator, Judge Kirk Nakamura (Ret.). Finally, a copy of the JAMS Arbitration Final Award, dated July 15, 2025, is attached as Attachment 8(c). As the Petition complies with CCP §1285.4, and there has been no response to the Petition, the Petition is **GRANTED** and the arbitrator's Final Award is **CONFIRMED**. Petitioner's counsel is ordered to submit a proposed judgment and to give notice of this ruling.
7	***Forward Financing LLC vs. Aladdin VIP Transportation Inc.*** *2025-01532815*	Before the court is the continued hear on the petition of petitioner Forward Financing, LLC (Petitioner) seeking to confirm a final arbitration award, dated December 1, 2025, by arbitrator Christina Magee, Esq., at Resolute Systems, LLC, in which Petitioner was awarded $64,425.66 against respondents Aladdin VIP Transportation Inc. and Alaaeddin Atik (collectively, Respondents). As more fully set forth below, the petition is **DENIED WITHOUT PREJUDICE**.

		The court first heard this petition on March 26, 2026. At that time the court continued the hearing to today's date because Petitioner failed to file a proof of service showing Respondents and been properly served with the petition and notice of the hearing. Specifically, the court ruled as follows: "Before the Court is the petition by petitioner Forward Financing, LLC (Petitioner) seeking to confirm a final arbitration award, dated December 1, 2025, by arbitrator Christina Magee, Esq., at Resolute Systems, LLC, in which Petitioner was awarded $64,425.66 against respondents Aladdin VIP Transportation Inc. and Alaaeddin Atik (collectively, Respondents). As more fully set forth below, the hearing is **CONTINUED TO THURSDAY, MAY 28, 2026, AT 2:00 P.M., IN DEPARTMENT C23**, for proper service and notice. "Petitioner is required to serve the petition and notice of hearing at least 10 days prior to the hearing. (Code Civ. Proc., § 1290.2.) The manner in which service is to be made is governed by Code of Civil Procedure section 1290.4, which provides as follows: "'(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice. "'(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: "'(1) Service within this State shall be made in the manner provided by law for the service of summons in an action. "'(2) Service outside this State shall be made by mailing the copy of the petition and notice and other papers by registered or certified mail. Personal service is the equivalent of such service by mail. Proof of service by mail shall be made by affidavit showing such mailing together with the return receipt of the United States Post Office bearing the signature of the person on whom service was made. Notwithstanding any other provision of this title, if service is made in the manner provided in this paragraph,

		the petition may not be heard until at least 30 days after the date of such service. "'(c) If the arbitration agreement does not provide the manner in which such service shall be made and the person on whom service is to be made has previously appeared in the proceeding or has previously been served in accordance with subdivision (b) of this section, service shall be made in the manner provided in Chapter 5 (commencing with Section 1010) of Title 14 of Part 2 of this code.' "California Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days prior to the hearing. "Here, no proof of service has been filed showing the petition and notice of hearing have been served on Respondents. Accordingly, the hearing is **CONTINUED** as set forth above for Petitioner to properly and timely serve the petition, notice of hearing, and any other necessary documents." Since the March 26, 2026 hearing, Petitioner has not filed any notice of ruling, notice of hearing, or proof of service showing Respondent has received any documents filed in this case or received any notice of this hearing. Petitioner also has not filed anything demonstrating any efforts have been made to located and serve Respondents. Based on the failure to properly serve Respondents and provide notice of this hearing despite being given the opportunity to do so, the petition is **DENIED WITHOUT PREJUDICE**. Petitioner's counsel is ordered to give notice of this ruling.
8.	***Azizi vs. Mobilitas Insurance Company*** *2026-01556670*	Before the court is the motion of respondent Mobilitas Insurance Company (Mobilitas) to stay arbitration. As more fully set forth below, the motion is **DENIED WITHOUT PREJUDICE**. Initially, the court notes Mobilitas identifies itself as the respondent in this case even though it is the party who initiated these proceedings. As the party who filed the petition to open this case, Mobilitas should be identified as the petitioner in these proceedings, even though it is the one against whom relief may ultimately be sought in any arbitration. By this motion, Mobilitas seeks an order to stay arbitration proceedings pending resolution of occupational accident

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<tr><td></td><td></td><td>insurance claim of "petitioner" Mirwais Azizi (Azizi). The stay is to prevent Azizi from proceeding with any arbitration until the other claim is resolved. Mobilitas, however, has failed to properly serve Azizi so as to concur jurisdiction with the court over Azizi. The only proof of service Mobilitas has served states the motion was served on an attorney who allegedly represents Azizi. There is nothing to show the law office represents Azizi. More importantly, there is nothing to show this law office has authority to accept service on Azizi's behalf or that Azizi agreed to accept electronic service of the petition. Personal service of the case initiating document, and potentially as summons, generally is required for the court to acquire jurisdiction over a responding party. Mobilitas has failed to provide any evidence or authority to show this court has authority over Azizi so as to make any orders affecting Azizi's rights.

Moreover, Mobilitas has failed to present any evidence to show there is any pending arbitration for the court to stay. A demand for arbitration does not necessarily equate to a pending arbitration. All the court has is the conclusory statement by Mobilitas's counsel that "Azizi demanded formal arbitration." That is not sufficient.

Based on the foregoing, the motion is DENIED WITHOUT PREJUDICE.

Mobilitas's counsel is ordered to give notice of this ruling.</td></tr>
<tr><td>9.</td><td>Key vs. Delgado

2023-01316546</td><td>Before the court is the motion by plaintiff Carol Key (Plaintiff) for an award of attorney fees and costs in the amount of $71,807.81. As more fully set forth below, the motion is DENIED.

This case arises from an allegedly fraudulent deed being recorded in 2011 that gave defendant Dunia Delgado (Defendant) a five percent interest in Plaintiff's San Clemente property. On November 20, 2025, the court entered a judgment after a court trial in favor of Plaintiff and against Defendant. Pursuant to the judgment, Plaintiff prevailed on the first cause of action for cancellation of written instrument and the third cause of action for quiet title. (ROA 219.) Plaintiff did not prevail on the second cause of action for slander of title or the fourth cause of action for violation of California Penal Code section 496.

On a motion for attorney fees, the moving party has the burden to (1) establish entitlement to an award, and (2) document the appropriate hours expended and hourly rates. (ComputerXpress, Inc. v. Jackson (2001) 93 Cal.App.4th 993, 1020.) Attorney fees generally are not</td></tr>
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		recoverable unless specifically provided for by statute or subject to an express agreement between the parties. (*D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 25; Code Civ. Proc., § 1021.) Code of Civil Procedure second 1021 provides, "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided." Here, Plaintiff seeks attorney fees pursuant to Code of Civil Procedure sections 874.010 and 874.020, which authorize an award of attorney fees and other disbursements or expenses in actions for partition of property. Plaintiff argues her complaint was akin to a partition action pursuant to Code of Civil Procedure section 871.010 et. seq., and as a prevailing party in a partition action, Plaintiff is entitled to recover her attorney fees and other expenditures. This case, however, was not a partition action. Plaintiff's operative first amended complaint alleged causes of action for cancellation of a written instrument, slander of title, quiet title, and violation of California Penal Code section 496. Plaintiff did not allege a claim for partition and this case was neither litigated nor tried as a case for partition. As stated above, Plaintiff prevailed only on the claims for cancellation of written instrument and quiet title. A partition action serves a fundamental different purpose than an action to quiet title or cancel an instrument. A partition action is typically brought by co-owners to divide or sell commonly owned property and terminate their shared ownership. An action to quiet title or cancel an instrument is brought to establish clear title against adverse claims or clouds on title. (See, e.g., *LEG Invs. v. Boxler* (2010) 183 Cal.App.4th 484, 493 [primary purpose of partition suit is "to sever the unity of possession"]; *Robin v. Crowell* (2020) 55 Cal.App.5th 727, 740 ["A quiet title action is a statutory action that seeks to declare the rights of the parties in realty"]; *Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, 292 [claim for cancellation of written instrument allows plaintiff to cancel instrument "that creates a cloud on the plaintiff's title"].) Based on the foregoing, Plaintiff is not entitled to recover either her attorney fees or expenses under Code of Civil Procedure sections 874.010 and 874.020, and therefore the motion is **DENIED IN ITS ENTIRETY**. This ruling does not

		impact Plaintiff's statutory right to recover prevailing party costs under Code of Civil Procedure sections 1032 and 1033.5, and a memorandum of costs. This ruling is limited to this motion and the request to recover attorney fees and expenses pursuant to the partition statutes. Plaintiff's counsel is ordered to give notice of this ruling.
10.	***Bryan Cave Leighton Paisner LLP vs. Napster Corporation*** *2026-01548951*	**OFF CALENDAR** based on notice of withdrawal filed on May 21, 2026.
11.	***Domaoal vs. Caring Moments, Inc.*** *2019-01104318*	Before the court is the motion of judgment creditor Alicia Domaoal (Domaoal) to amend the judgment to add Joan Christine Sangrones Botin A/K/A Joan Christine Botin (Botin) and Immanuel Care Home LLC (Immanuel). As more fully set forth below, the motion is **DENIED WITHOUT PREJUDICE**. Judgment was entered in this action in October 2019 on the request of the California Labor Commissioner following administrative proceedings before the Labor Commissioner regarding the failure to pay wages. The Labor Commissioner awarded Domaoal $73,631.26 in unpaid wages, damages, interest, penalties, and costs as against Caring Moments, Inc, a suspended California corporation. By this motion, Domaoal seeks to amend that judgment to add Botin and Immanuel as judgment debtors pursuant to Labor Code sections 200.3, subdivision (a), 238, subdivision (e), and 558.1, subdivision (a). Botin and Immanuel are not parties to the judgment. Domaoal, however, has only served this motion on Botin and Immanuel by mail, and has failed to show merely mailing copies of this motion to Botin and Immanuel at multiple unexplained addresses is sufficient to provide a basis for the court to exercise personal jurisdiction over these nonparties. When a party seeks to amend a judgment to at a nonparty as an alter ego of a judgment debtor, the court must have jurisdiction over the judgment debtor's alter ego in order to enter a valid judgment against the alter ego, and that is normally accomplished by service of process. (See *Milrot v. Stamper Med. Corp.* (1996) 44 Cal.App.4th 182, 186.)

		The court recognizes this is not a motion to amend the judgment to add an alter ego in the traditional sense, but rather a motion to amend under the foregoing Labor Code provisions. Nonetheless, Domaoal has not presented any authority to show the same due process requirements do not apply here. Indeed, Domaoal has not shown the court may add a nonparty as a judgment debtor without the nonparty being served in a sufficient manner to confer jurisdiction over the nonparty. Based on the foregoing, the motion is **DENIED WITHOUT PREJUDICE**. Domaoal's counsel is ordered to give notice of this motion.
12.	***Santos vs. Crenshaw Manufacturing Inc.*** *2025-01488879-*	Before the court is the motion of judgment creditor Marivel Santos (Santos) to amend judgment pursuant to Code of Civil Procedure section 187. As more fully set forth below the motion is **DENIED WITHOUT PREJUDICE**. On July 14, 2023, Santos obtained an award from the Workers' Compensation Appeals Board of the State of California against judgment debtor Crenshaw Manufacturing Inc. (Crenshaw) in the amount of $194,356.55 arising out of an injury Santos sustained while working for Crenshaw. On June 3, 2025, Santos filed these proceedings and obtained a judgment against Crenshaw based on the Appeal Board award. By this motion, Santos seeks to amend that judgment to add nonparty Waleed Mansour (Mansour) as a judgment debtor on the ground Mansour is an alter ego of Crenshaw. Code of Civil Procedure section 187 provides, "When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code. "The authority provided to courts by section 187 includes the power to add a judgment debtor where a person or entity is an alter ego of the original judgment debtor." (*Butler America, LLC v. Aviation Assurance Co., LLC* (2020) 55 Cal.App.5th 136, 145.) "'Amending a judgment to add an alter ego of an original judgment debtor "'is an equitable procedure based on the theory that the court is not amending the judgment to add a new defendant but is merely inserting the correct name of the real defendant.'""

		(*Angel Lynn Realty, Inc. v. George* (2025) 114 Cal.App.5th 655, 663 (*Angel Lynn Realty*).) Based on due process concerns, however, a default judgment may not be amended to add a nonparty alter ego. (See *Motores de Mexicali, S.A. v. Superior Court* (1958) 51 Cal.2d 172, 175-176; *Wolf Metals Inc. v. Rand Pac. Sales, Inc.* (2016) 4 Cal.App.5th 698, 703-704, 708-709; *NEC Electronics, Inc. v. Hurt* (1989) 208 Cal.App.3d 772, 779.) "'"Usually, a disregard of the corporate entity is sought in order to fasten liability upon individual stockholders. . . ."'" (*Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.* (2013) 217 Cal.App.4th 1096, 1107 (*Toho-Towa*).) "In California, common principles apply regardless of whether the alleged alter ego is based on piercing the corporate veil to attach liability to a shareholder or to hold a corporation liable as part of a single enterprise. In both cases, '[t]he law as to whether courts will pierce the corporate veil is easy to state but difficult to apply.' [Citation.] Because it is founded on equitable principles, application of the alter ego 'is not made to depend upon prior decisions involving factual situations which appear to be similar. . . . "It is the general rule that the conditions under which a corporate entity may be disregarded vary according to the circumstances of each case."' [Citations.] Whether the evidence has established that the corporate veil should be ignored is primarily a question of fact which should not be disturbed when supported by substantial evidence. [Citations.]" (*Toho-Towa*, *supra*, 217 Cal.App.4th at p. 1108.) To prevail on a motion to amend a judgment to add a nonparty, "'the judgment creditor must show, by a preponderance of the evidence, that "(1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone."'" What constitutes sufficient control depends on the facts of each individual case. For example, Control was shown where the nonparty alter ego hired counsel to represent the corporation, was the person with whom the corporate defendant's counsel primarily dealt, was kept fully informed of the suit's progress, was familiar with all the issues, and helped draft documents for the litigation. (*Alexander v.*

		Abbey of the Chimes (1980) 104 Cal.App.3d 39, 46.) But control was not shown where sole owner hired and discharged corporation's attorneys, appeared at settlement conferences and financed the litigation, but was not named individually, knew the corporation was on the verge of dissolution, and had no personal duty to defend the underlying action. (*Katzir's Floor & Home Design, Inc. v. M-MLS.com* (9th Cir. 2004) 394 F.3d 1143, 1149-1150.) In determining whether there is a sufficient unity of interest the many factors the courts consider include "'one individual's ownership of all stock in a corporation; use of the same office or business location; commingling of funds and other assets of the individual and the corporation; an individual holding out that he is personally liable for debts of the corporation; identical directors and officers; failure to maintain minutes or adequate corporate records; disregard of corporate formalities; absence of corporate assets and inadequate capitalization; and the use of a corporation as a mere shell, instrumentality or conduit for the business of an individual.' [Citation.] Other recognized factors include "'the use of the corporate entity to procure labor, services or merchandise for another person or entity' and 'the diversion of assets from a corporation by or to a stockholder or other person or entity, to the detriment of creditors."' [Citation.]" (*JPV I L.P. v. Koetting* (2023) 88 Cal.App.5th 172, 194-195.) "Critically, ""'[n]o single factor is determinative, and instead a court must examine all the circumstances to determine whether to apply the doctrine.'"' [Citation.] 'There is no litmus test to determine when the corporate veil will be pierced; rather the result will depend on the circumstances of each particular case.' [Citation.]" (*Id*. at p. 195.) An inequitable result is shown as a matter of law where the judgment debtor is insolvent due to the actions of an alter ego. (*Relentless Air Racing, LLC v. Airborne Turbine Ltd. Partnership* (2013) 222 Cal.App.4th 811, 816.) """Application of the alter ego doctrine does not depend upon pleading or proof of fraud."' [Citations.] It is enough that 'adherence to the fiction of the separate existence of the corporation would promote injustice or bring about inequitable results.' [Citation.]" (*Angel Lynn Realty*, *supra*, 114 Cal.App.5th at p. 1109, fn. 5.) "Difficulty in enforcing a judgment or collecting a debt does not satisfy" the inequitable result element. (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 539.) "The alter ego doctrine does not guard every unsatisfied creditor of a corporation but instead affords

		protection where some conduct amounting to bad faith makes it inequitable for the corporate owner to hide behind the corporate form." (*Ibid*.) "Alter ego 'is an extreme remedy, sparingly used.' [Citation.] '"The standards for the application of alter ego principles are high, and the imposition of [alter ego] liability . . . is to be exercised reluctantly and cautiously."' [Citation.] Still, '"[t]he greatest liberality is to be encouraged"' in allowing judgments to be amended to add the 'real defendant,' or alter ego of the original judgment debtor, '"in order to see that justice is done."' [Citations.]" (*Highland Springs Conference Training Center v. City of Banning* (2016) 244 Cal.App.4th 267, 281.) Here, Santos has failed to present sufficient evidence to meet her burden by a preponderance of the evidence. As stated above, Santos must establish three elements to meet that burden. The failure on any one of the elements requires the motion to be denied. Santos's evidence is highly conclusory and some of it is inadmissible. The motion's most glaring shortcomings is on the unity of interest element, especially when viewed in light of the evidence Mansour presents in opposition. Santos argues this element is met because Mansour owned and controlled Crenshaw, but the court finds more is needed to meet this element. For example, there is no showing regarding the capitalization, adherence to corporate formalities, commingling of asset, or any of the other factors identified above. Not all of these factors are required and no single factor is essential, but something more than ownership and control is needed. If not, every sole shareholder who runs a corporation would be an alter ego. Based on the foregoing, the motion is **DENIED WITHOUT PREJUDICE**. Any future motion must provide a much more detailed factual showing on each of the three required elements. Santos also should more fully address the argument the decision is this case was the equivalent of a default judgment, which would prevent the amendment of the judgment. As for Mansour's evidentiary objections, they are **SUSTAINED** as to objection nos. 1, 3, 4, 5, and 6 and **OVERRULED** as to all others. Santos's counsel is ordered to give notice of this ruling.

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<td>13.</td>
<td>Seton Hall University vs. Spitz

2026-01555640</td>
<td>Before the court are following applications and petition filed on behalf of petitioner Seton Hall University (Petitioner): (1) verified application of Thomas P. Scrivo to appear as counsel pro hac vice on behalf of Petitioner; (2) verified application of Michael J. Dee to appear as counsel pro hac vice on behalf of Petitioner; and (3) petition to enforce deposition subpoena for personal appearance and production of documents, electronically stored information, and things in action pending outside California pursuant to California Code of Civil Procedure section 2029.600.

<u>Motion Nos. 1 & 2: Pro Hac Vice Applications</u>

The applications Petitioner submitted on behalf of Messrs. Scrivo and Dee comply with the requires for California Rules of Court, rule 9.40 and do not disclose any basis for denying the applications. Accordingly, both applications are GRANTED and Messrs. Scrivo and Dee are hereby admitted pro hac vice in this case to appear on Petitioner’s behalf.

Petitioner is ordered to give notice of these rulings.

<u>Motion No. 3: Petitioner to Enforce Deposition Subpoena</u>

By this petition, Petitioner seeks to compel nonparty Eric Spitz (Spitz) to appear for deposition and produce documents. On May 11, 2026, Spitz filed an ex parte application to continue the hearing on this petition to provide him with adequate time to retain counsel. On May 12, 2026, the court denied that application because Spitz failed to establish he had acted with reasonable diligence or any other ground for an ex parte continuance. On May 14, 2026, attorney William Lockyer filed a notice of appearance stating he had been retained to represent Spitz in these proceedings.

Late in the day on May 26, 2026, the court learned attached to the back of the notice of appearance attorney Lockyer filed was a renewed ex parte application to continue the hearing on the petition. That renewed ex parte was never calendared or set for hearing because Spitz never took any of the steps necessary to have the application heard. For example, Spitz never separately filed the application, never provided a copy to the courtroom, never paid the filing fee, and never notified the courtroom until May 26, 2026. As such, the renewed ex parte application was never separately filed as a request for the court to consider and was never scheduled for a hearing or ruling.</td>
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		The court will not post a tentative ruling on the merits of the petition, but rather will hear from all parties at the hearing on the petition. The court's decision not to post a tentative does not necessarily mean the court will not proceed with a hearing on the merits of the petition. Indeed, the court reserves the ability to proceed with the petition and rule on its merits at the hearing. Whether to do so will be decided at the hearing.
14.	***In re the Petition of Brooks Street Partners, LLC*** *2026-01557423*	Before the court is the verified petition of petitioner Brooks Street Partners, LLC (Petitioner) for an order reinstating Petitioner to active status nunc pro tunc. As more fully set forth below, the petition is **GRANTED UPON CONDITION** pursuant to Government Code section 12261. Under section 12261, Petitioner has presented evidence establishing the factual representations set forth in the termination document that was submitted to the California Secretary of State on or about December 19, 2025, are materially false. Specifically, an employee of Petitioner's counsel prepared the termination document as a draft only and did not have authorization to file or otherwise submit them to the Secretary of State. Nonetheless, the termination document was inadvertently submitted. The termination document includes materially false factual representations because none of Petitioner's members or partners voted to terminate Petitioner, and Petitioner did not intend for the draft termination document to be filed with the Secretary of State. As such, Petitioner has made a showing sufficient to obtain relief under section 12261. Petitioner's reinstatement, however, must be "conditioned upon [Petitioner] concurrently submitting for filing an amendment to change its name to eliminate the conflict along with the certified copy of the order required by Section 12263." (Gov. Code., § 12261, subd. (b)(2).) As Petitioner explains, on December 24, 2025, Petitioner filed new articles of organization with the Secretary of State creating a new entity with the same name as Petitioner. Pursuant to Corporations Code section 17701.08, subdivision (b), two limited liability companies cannot have the same name and therefore one of the names must be changed. Further, the court notes no authority has been presented to authorize Petitioner's reinstatement "nunc pro tunc." To the contrary, Government Code section 12261, subdivision (b)(3), states, "That the business entity shall be reinstated effective from the date of the filing of the court order with the Secretary of State."

		Based on the foregoing, the petition is **GRANTED ON THE CONDITION** that, at the time Petitioner submits a certified copy of this court's order granting the petition, Petitioner concurrently submit an amendment to change its name or the name of the new entity to eliminate the conflict under Corporations Code section 17701.08, subdivision (b). Petitioner's counsel is directed to submit a proposed order consistent with the requirements of Government Code section 12261, subdivision (b).
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